Elon Law School
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Eric M. Fink

Elon University School of Law

Associate Professor of Law, 2007-present

- Tenure awarded 2012
- Jennings Professor and Emerging Scholar, 2010-2012

Teaching 2026-27

- Civil Procedure
- Professional Responsibility
- Employment Law
- Residency-in-Practice

Other Courses Taught

- Administrative Law
- Business Associations
- Cause Lawyering
- Consumer Protection
- Labor Law
- Socio-Legal Perspectives

Publications

Journal Articles

"Just When I Thought I was Out ...": Post-Employment Repayment Obligations, with Stuart Lichten, 25 *Washington & Lee Journal of Civil Rights & Social Justice* 51 (2018)

Union Organizing & Collective Bargaining for Incarcerated Workers, 52 *Idaho Law Review* 953 (2016)

Sewer Syndicalism: Worker Control in Public Services, 14 *Nevada Law Journal* 444 (2014)

No Money, Mo' Problems: Why Unpaid Law Firm Internships Are Illegal and Unethical, 47 *University of San Francisco Law Review* 435 (2013)

The Virtual Construction of Legality: "Griefing" and Normative Order in Second Life, 21 *Journal of Law, Information, and Science* 89 (2011)

Law School and The Web of Group Affiliation: Socializing, Socialization, and Social Network Site Use Among Law Students, 27 *John Marshall Journal of Computer and Information Law* 325 (2010)

Liars and Terrorists and Judges, Oh My: Moral Panic and the Symbolic Politics of Appellate Review in Asylum Cases, 83 *Notre Dame Law Review* 2019 (2008); reprinted in 29 *Immigration and Nationality Law Review* 45 (2008); cited in Djadjou v. Holder, 662 F.3d 265 (4th Cir. 2011) and Zuh v. Mukasey, 547 F.3d 504, 513 (4th Cir. 2008)

Post-Realism, or the Jurisprudential Logic of Late Capitalism: A Socio-Legal Analysis of the Rise and Diffusion of Law and Economics, 55 *Hastings Law Journal* 931 (2004)

Book Note, The Caribbean: New Dynamics in Trade and Political Economy, 28 *NYU Journal of International Law and Politics* 644 (1996)

Chapters, Reports, & Other Publications

Federal Student Loan Servicing: Contract Problems and Public Solutions, with Roland Zullo, Jobs With Justice Education Fund (2014)

Union and Employee Access to Employer E-mail Systems Under Federal Labor Law, with Stuart W. Davidson, in *The CyberUnion Handbook: Transforming Labor Through Computer Technology* (A. Shostak, ed., 2002)

Contributing Editor, *The Developing Labor Law* (P. Hardin, ed., 4th ed. 2001)

Conference Presentations

Southeastern Academy of Legal Studies in Business

Annual Meeting

- The Economic & Social Impact of North Carolina HB2 (November 2016)

Stony Brook University, Center for Study of Working Class Life

How Class Works Conference

- Police Union Contracts & Police Violence Against Civilians (June 2016)

University of Idaho School of Law, Idaho Law Review

Annual Symposium

- Union Organizing & Collective Bargaining for Incarcerated Workers (April 2016)

ABA Section of International Law

Spring Meeting

- Unpaid Law Student Internships: Legal & Ethical Issues (April 2014)

UNLV Boyd School of Law, Nevada Law Journal

Workplace & Democracy Symposium

- Worker Self-Management in Public Services (February 2012)

International Institute for the Sociology of Law

Social Economy Conference

- Worker Self-Management in Public Services (July 2011)

Southeastern Association of Law Schools

Annual Meeting

- Panel on Internet Culture and the Law (July 2011)
- Legal Consciousness in the Second Life Virtual World (August 2010)
- Panel on Academic Legal Blogs in Scholarship and Teaching (August 2009)

Law and Society Association

Annual Meeting

- Legal Consciousness in the Second Life Virtual World (May 2010)

Public Talks & Workshops

North Carolina Bar Association

NC/SC Labor & Employment Law Conference

- U.S. Supreme Court Review & Update (February 2026)
- Family Responsibility Accommodation and Discrimination (October 2008)

2026 Fundamentals of Employment Law

- Federal Discrimination Law (February 2026)

2024 Basics of Elder and Special Needs Law

- Ethics in Guardianship Representation (October 2024)

Elon Law School

National Lawyers Guild

- Mass Incarceration & Prison Labor (February 2017)
- *Harris*, *Friedrichs*, and the Implications for Union Organizing (November 2015)
- Corporations and Campaign Finance (September 2012)
- *Citizens United*, Corporations, and Democracy (July 2012)

Federalist Society

- Pros and Cons of a Minimum Wage Increase (November 2016)

Incarcerated Worker Organizing Project

- Union Organizing for Incarcerated Workers: Legal Obstacles and Opportunities (September 2023)

National Society for Experiential Education

- *National and Regional Workshops*: Legal Issues in Experiential Learning (2010-2019)

UNC Greeensboro

- *Alpha Kappa Delta Sociology Honors Society*: Sociology in Legal Practice and Legal Scholarship (April 2017)
- *Gamma Theta Upsilon Geography Honors Society*: The Place of Place in Law: Law and Geography (April 2008)

Rockingham County Democratic Party

- *Annual Convention Keynote Address*: Taking Democracy Seriously (April 2017)
- *African-American Caucus*: Voting Rights in North Carolina (February 2017)

Open Government Coalition/Sunshine Center

- NC Open Government Law: A Guide for Public Officials (October 2009)
- Forum on NC Public Records Law (March 2008)

State Employees Association of North Carolina

- Public Employee Unions and Collective Bargaining (October 2009)

Mitchell Community College

- The Labor Movement and Labor Law in 2009 (September 2009)

Past Teaching Experience

Stanford Law School, Palo Alto, CA

Lecturer in Law, 2004-2006

- Legal Research and Writing

St. Joseph's University/Comey Institute, Philadelphia, PA

Instructor, 1997-2003

- Labor Law; Negotiations; Arbitration; History and Sociology of the U.S. Labor Movement

Anglo-American College, Prague, Czech Republic

Lecturer, February-October 1992

- Introduction to Sociology; Economic Sociology; Sociology of Law

Legal Practice

Leonard Carder, LLP, Oakland and San Francisco, CA

Associate, 2006-2007

- Labor and Employment Law

Eckert Seamans Cherin and Mellott, Philadelphia, PA

Associate, 2002-2004

- Civil Litigation

Willig, Williams and Davidson, Philadelphia, PA

Associate, 1997-2002

- Labor and Employment Law

Education

New York University School of Law, New York, NY

J.D., magna cum laude, 1997

- Arthur Garfield Hays Civil Liberties Fellow
- Journal of International Law and Politics, Symposium Editor
- Order of the Coif

University of Chicago, Chicago, IL

Doctoral Student in Sociology (ABD), 1987-1992

- Special Fields: Organizations (honors); Economic Sociology

London School of Economics, London, England

M.Sc., Sociology, 1985

- Thesis: Policing and Riots in the U.S. and U.K.

The Johns Hopkins University, Baltimore, MD

B.A., Sociology, 1984

Professional Associations

- Law and Society Association
- Labor Research & Action Network
- Labor & Working Class History Association
- Working Class Studies Association

- North Carolina Bar Association
- NC State Bar Ethics Committee, Advisory Member (2011-2013)

Bar Admissions

State

- California
- Pennsylvania (Retired Status)

Federal

- Third Circuit U.S. Court of Appeals, Eastern District of Pennsylvania
- Middle District of Pennsylvania